

AI Governance Diagnostic Report

Kestrel Valley Wildlife Trust

Charity (UK) · Engagement ref CLR-KVWT-UK-0001 · 03 October 2026

HIGH RISK

Sample report · Fictional organisation
Engine v1.6 · Library v1.9.8

AI Governance Diagnostic Report

Engagement ref	CLR-KVWT-UK-0001	Date issued	03 October 2026
Organisation	Kestrel Valley Wildlife Trust	Engine version	v1.6 · Library v1.9.8
Sector	Charity (UK)	Active layers	core, gdpr, uk_charity

● **HIGH RISK: 6 governance gaps identified. 0 Critical · 4 High · 2 Medium**

CRITICAL 0	HIGH 4	MEDIUM 2	DEPLOYMENT BLOCKERS 0	ASSESSMENT CONFIDENCE 100%
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This report is the output of a fixed-rules diagnostic evaluation. Every gap was triggered by the intake responses against a fixed gap library. The same inputs produce the same findings every time. This is not a consultant's view. It is a structured result. It does not constitute legal or regulatory advice. Specific regulatory obligations should be confirmed with your legal or compliance adviser.

EXECUTIVE SUMMARY

This diagnostic identified 6 governance gaps across Kestrel Valley Wildlife Trust's AI deployment in the Charity (UK) sector, spanning decision governance and audit capability, data protection and individual rights, and charity governance and donor-data protection. The full findings, regulatory consequences, and remediation actions are set out in this report.

The gaps identified do not represent isolated process failures. They represent the absence of structural governance controls that regulators, courts, and insurers increasingly treat as baseline obligations. Where multiple gaps are present simultaneously, the risk is not additive. It is compounding. A single incident touching an ungoverned AI system will expose every gap at once.

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Gap Findings

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Every gap below was triggered by intake signals. Each states when it becomes visible and what closes it. Gaps are ordered by severity.

HIGH	G03-CORE-AUDIT Audit void Someone affected by a decision disputes it and asks to see the record. The decision happened. The record of it did not. Regulatory obligations: UK GDPR Art 22C · DUAA 2025 · EU AI Act Art 12
HIGH	GDPR-G04-DSR-PROCESS No process for handling data subject rights in AI systems Someone contests an automated decision about them, which is their right under UK GDPR. There is no process on the other end to receive that challenge, only silence. Regulatory obligations: UK GDPR Arts 15-22 · UK GDPR Art 22C · DUAA 2025 · ICO DSR Guidance · Data Protection Act 2018 s.167
HIGH	UK-CHARITY-G01-CC-ACCOUNTABILITY No trustee accountability structure for AI-assisted charitable decisions The Charity Commission opens an inquiry and asks which trustee was accountable for decisions the AI system shaped. The charity has no answer. Regulatory obligations: Charity Commission CC3 - The essential trustee: duty to act with reasonable care and skill and to manage the charity's resources responsibly · Charity Commission CC20 - Charity fundraising: a guide to trustee duties (trustees remain accountable for fundraising, including AI use) · Charity Commission CC29 - Conflicts of Interest: decision governance requirements · Charities Act 2011 s.177 - charity trustees are the persons having general control and management of the administration of the charity · NIST AI RMF Govern 1.1 - organisational AI governance accountability
HIGH	UK-CHARITY-G02-GIFT-AID-DATA No compliant data governance for AI processing of donor data, including Gift Aid records A donor submits a Subject Access Request and asks why they were selected for an appeal. The charity cannot say what its AI system processed about them or where the wealth data came from. Regulatory obligations: UK GDPR Article 5(1)(b) - purpose limitation · UK GDPR Article 13/14 - transparency and disclosure obligations · HMRC Charities: detailed guidance notes - Gift Aid declarations and the records charities must keep · ICO direct marketing guidance and PECR - lawful basis and transparency for profiling and donor outreach · Fundraising Regulator Code of Fundraising Practice - donor data use standards · Charity Commission CC20 - Charity fundraising: a guide to trustee duties (donor records; following the Code of Fundraising Practice)

MEDIUM	G02-CORE-PROVENANCE Provenance weakness A regulator or auditor asks where the data came from that drove a specific decision. Tracing it back takes days, not minutes, and for some inputs there is no trail at all. Regulatory obligations: UK GDPR Art 5(1)(d) · UK GDPR Art 22C · DUAA 2025 · ICO Data Accuracy Guidance
MEDIUM	GDPR-G02-PURPOSE-LIMITATION Personal data used by AI beyond its original collection purpose Someone asks why their data ended up feeding an AI system they never knew existed. The honest answer is that it was collected for something else entirely, and no one checked whether feeding it to this system was still compatible with that original purpose. Regulatory obligations: UK GDPR Art 5(1)(b) · UK GDPR Art 6 · DUAA 2025 Art 8A · ICO Purpose Limitation Guidance

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Regulatory Obligations

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The obligations below are engaged by the gaps identified in this report. GAP: a triggered finding directly engages this obligation. REVIEW: this obligation is relevant to your sector and worth examining. NOT COVERED: this assessment did not include questions for this obligation.

OBLIGATION	RELEVANCE	STATUS
UK GDPR Art 6	Lawful basis must be documented for every AI processing activity involving personal data	REVIEW
UK GDPR Art 22C	Human review mechanism required for automated decisions affecting individuals	GAP
UK GDPR Art 28	Data Processing Agreements required with every AI vendor processing personal data	REVIEW
DUAA 2025	AI-specific data rights and oversight obligations under the Data Use and Access Act	REVIEW
Charity Commission CC3 / Charities Act 2011	Trustees act with reasonable care and skill and stay accountable for AI-assisted decisions	GAP
Charity Commission CC20 / Code of Fundraising Practice	Trustees remain accountable for fundraising, including AI-driven targeting and use of donor data	GAP
PECR / ICO direct marketing guidance	Lawful basis and transparency for profiling supporters and AI-assisted donor outreach	GAP
Charities Act 2011 s.4 / Charity Commission PB2	AI-assisted decisions traceable to the charity's purposes and public benefit	REVIEW
DPA 2018 Schedule 1	Documented conditions for AI processing of volunteer, staff and DBS data	REVIEW
Safeguarding duties / Charity Commission serious incident reporting	Named human reviewer able to intervene before AI decisions affect children or adults at risk	REVIEW

NEXT STEP

CLEARANCE identifies gaps. It does not remediate them. Remediation is carried out by a qualified partner. Contact whoever provided this report to discuss next steps.

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Remediation Roadmap

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One action per gap. Ordered by timeline. Critical gaps require immediate action. High severity gaps must be addressed within 90 days. Medium severity gaps within 180 days.

TIMELINE	GAP	ACTION REQUIRED	PRIORITY	OWNER
90 DAYS	G03-CORE-AUDIT Audit void	Start logging every decision this system makes today: date, input, output, rule applied, in a write-once store. This is the foundation. Every other governance control depends on it existing.	HIGH	your compliance lead
90 DAYS	GDPR-G04-DSR-PROCESS No process for handling data subject rights in AI systems	Map every AI system holding personal data into the data subject rights response workflow. Document the Article 22C human review process. Implement the DUAA 2025 complaints mechanism.	HIGH	your Data Protection Officer

TIMELINE	GAP	ACTION REQUIRED	PRIORITY	OWNER
90 DAYS	UK-CHARITY-G01-CC-ACCOUNTABILITY No trustee accountability structure for AI-assisted charitable decisions	Name a trustee owner this week. Minute it at the next board meeting.	HIGH	your board of trustees
90 DAYS	UK-CHARITY-G02-GIFT-AID-DATA No compliant data governance for AI processing of donor data, including Gift Aid records	Map what donor data your AI systems access this week. Confirm the lawful basis for each processing activity.	HIGH	your Data Protection Officer
180 DAYS	G02-CORE-PROVENANCE Provenance weakness	Create a register of every data source feeding this system. Assign an owner and a validation status to each.	MEDIUM	your system architect
180 DAYS	GDPR-G02-PURPOSE-LIMITATION Personal data used by AI beyond its original collection purpose	Identify every AI processing activity using data beyond its original collection purpose. Complete a compatibility assessment for each under DUAA 2025 Article 8A. Update privacy notices before the next data collection cycle.	MEDIUM	your Data Protection Officer

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Evidence Appendix

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ASSESSMENT RESPONSES

QUESTION	RESPONSE	CATEGORY
AI system is live in production or active pilot	Yes	Your AI system
System makes or influences high-impact decisions	Yes	Your AI system
Decisions execute without individual human review	Yes	Your AI system
A written decision boundary document exists	Yes	Rules and boundaries
That document is version-controlled and enforced at runtime	Yes	Rules and boundaries
System uses data from outside the organisation	Yes	Data
Every input is traceable to its origin, owner, and last update	No	Data
Automated validation runs before data reaches the system	No	Data
Every decision is logged automatically at the time it happens	Yes	Records and accountability
A tamper-evident, provable audit trail exists	No	Records and accountability
A functioning human override mechanism exists and is used	Yes	Records and accountability
A named individual is personally accountable for this system	Yes	Records and accountability
Signed Data Processing Agreements with suppliers processing personal data	Yes	Records and accountability
An incident, near-miss, or complaint has occurred	No	When things go wrong
Documented corrective action was taken following the incident	No	When things go wrong
Are trustees aware of and accountable for AI systems operating in the charity's name?	No	Charity Controls
Where AI processes donor data (giving history, Gift Aid records, profiling or wealth screening), is the lawful basis documented and have donors been told?	No	Charity Controls
Can you demonstrate how AI decisions serve the charity's public benefit purpose?	Yes	Charity Controls
Is volunteer personal data processed by AI under a lawful basis and with appropriate controls?	Yes	Charity Controls
Are safeguarding controls in place for any AI system that affects vulnerable beneficiaries?	Yes	Charity Controls

ASSESSMENT INTEGRITY

Organisation: Kestrel Valley Wildlife Trust
Sector: Charity (UK)
Run ID: 0003eb83-fe7a-4ec9-8ea9-eb654e913ae4
Engine version: v1.6 · **Library version:** v1.9.8
Active layers: core, gdpr, uk_charity
Findings hash: aa22eec757cbd89d036cc32f2d5e28c91fd240260640ca3042320209518295e2
Generated: 2026-10-03T11:00:45.109228+00:00

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